

25STCV23562 25STCV23562

County: los-angeles

Division: Civil Law and Motion

Department: 414

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Case Number: 25STCV23562 Hearing Date: July 31, 2026 Dept: 414

25STCV23562 WEILER V.

FRANDZEL ET AL.

Friday,

July 31, 2026

[TENTATIVE] ORDER DENYING PLAINTIFF'S

MOTION TO STAY PROCEEDINGS PENDING RESOLUTION OF PLAINTIFF'S COUNSEL'S MOTION

TO WITHDRAW AS COUNSEL (5618)

I.

BACKGROUND

This

action alleges claims for breach of implied warranty of habitability and related claims arising from conditions in Plaintiff's residential unit. Plaintiff's counsel asks for a 60-day stay following Plaintiff's counsel's motion to be relieved. Defendant unilaterally noticed Plaintiff's deposition which should not occur while Plaintiff's representation is in flux. Plaintiff's counsel argues ethical obligations requires withdrawing counsel to take reasonable steps to avoid reasonably foreseeable prejudice to the rights of the client, such as giving the client sufficient notice of retain other counsel.

Defendant

opposes the motion because Plaintiff did not establish that a blanket stay is necessary. A stay would interrupt an active discovery dispute. If the Court grants the motion, Defendant asks that the stay exclude the informal discovery conference, the discovery dispute, and Defendant's ability to pursue a discovery motion.

II.

DISCUSSION

Plaintiff's

counsel has not demonstrated with any authority that the case should be stayed until Plaintiff can retain new counsel. The delay would disrupt the Court's efficiency. Defendant would also suffer prejudice brought by delay in resolving the matter.

III.

CONCLUSION

Based on the foregoing, the motion for a stay is denied.

[TENTATIVE] ORDER

GRANTING PLAINTIFF COUNSEL'S MOTION TO BE RELIEVED AS COUNSEL FOR PLAINTIFF
ERIN WEILLER (6075)

[TENTATIVE] ORDER

GRANTING PLAINTIFF'S COUNSEL'S MOTION TO BE RELIEVED AS COUNSEL FOR PLAINTIFF
ERIN WEILLER (8183)

Max S.

Roberts and Julia Vendditti, as counsel for Plaintiff,
Erin Weiler, file two separate motions requesting an order to be
relieved as counsel of record because of a breakdown in the attorney-client
relationship. Both counsel served the motion on the client by mail at an
address confirmed within the last 30 days.

Defendants

have not demonstrated that the motion should be denied or deferred until after
the Informal Discovery Conference. While
Defendants contend the withdrawal would disrupt an active discovery dispute, Defendant
does not cite any authority that gives the Court discretion to force an
attorney to represent a recalcitrant client. The proceedings will not be
delayed since Defendant can continue to resolve the dispute directly with the Plaintiff.

Both

counsel have complied with the requirements of California Rules of Court, Rule 3.1362.

Accordingly, both motions are GRANTED. The order is effective upon the filing of the proof of service of the signed order upon the client.